

THOMAS, J., concurring in judgment

A

This Court first decided that the Sixth Amendment protected a right to unanimity in *Thompson v. Utah*, 170 U. S. 343 (1898). The Court reasoned that Thompson, a Utah prisoner, was protected by the Sixth Amendment when Utah was still a Territory because “the right of trial by jury in suits at common law appl[ied] to the Territories of the United States.” *Id.*, at 346. The Court then stated that this right “made it impossible to deprive him of his liberty except by [a] unanimous verdict.” *Id.*, at 355; see also *id.*, at 351, 353.

The Court has repeatedly reaffirmed the Sixth Amendment’s unanimity requirement. In *Patton v. United States*, 281 U. S. 276 (1930), the Court stated that the Sixth Amendment protects the right “that the verdict should be unanimous,” *id.*, at 288. In *Andres v. United States*, 333 U. S. 740 (1948), the Court repeated that “[u]nanimity in jury verdicts is required” by the Sixth Amendment, *id.*, at 748. And in *Apodaca v. Oregon*, 406 U. S. 404 (1972), five Justices agreed that “the Sixth Amendment’s guarantee of trial by jury embraces a guarantee that the verdict of the jury must be unanimous,” *id.*, at 414 (Stewart, J., joined by Brennan and Marshall, JJ., dissenting); see also *Johnson v. Louisiana*, 406 U. S. 356, 371 (1972) (Powell, J., concurring) (explaining views in *Apodaca* and its companion case); *id.*, at 382–383 (Douglas, J., joined by Brennan and Marshall, JJ., dissenting) (same). We have accepted this interpretation of the Sixth Amendment in recent cases. See *Southern Union Co. v. United States*, 567 U. S. 343, 356 (2012); *Blakely v. Washington*, 542 U. S. 296, 301 (2004); *Apprendi v. New Jersey*, 530 U. S. 466, 477 (2000).

B

The question then becomes whether these decisions are entitled to *stare decisis* effect. As I have previously explained, “the Court’s typical formulation of the *stare decisis*